

23BBCV01916 23BBCV01916

County: los-angeles

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Case Number: 23BBCV01916 Hearing Date: August 7, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION TO COMPEL INITIAL RESPONSES; REQUEST FOR SANCTIONS

Hearing Date: 8/7/26

CASE NO./NAME: 23BBCV01916 / Albert Valle v. Eduard Barakyozyan, et al.

Moving Party: Plaintiff Albert Valle

Responding Party: Defendant Eduard Barakyozyan

Notice: Sufficient

Ruling: DENIED

NOTICE

The

Court is NOT requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

BACKGROUND

This is a personal injury case. On May 15, 2023, Plaintiff Albert Valle (Plaintiff) allegedly suffered third-degree burns after he tripped on debris, miscellaneous items, and/or an exposed concrete slab at 9867 Milbur Dr., Sun Valley, CA 91352 (the Property) and hot tar spilled on him. (Angulo Decl., ¶ 4.) Defendant Eduard Barakyozyan (Defendant) allegedly owned, leased, occupied, or controlled the Property. (Ibid.)

On August 18, 2023, Plaintiff filed his Complaint. On September 18, 2025, Plaintiff propounded Requests for Production of Documents, Set Four (RPDs) and Special Interrogatories, Set Two (Interrogatories) on Defendant. (Angulo Decl., ¶ 10.) After receiving two extensions, Defendant failed to respond to discovery requests. (Ibid.)

On February 13, 2026, Plaintiff filed the instant motions to compel verified responses to the RPDs and Interrogatories. On July 10, 2026, the Court granted Defendant's motion for relief from waiver of objections. On July 20, 2026, Defendant filed oppositions to each. No reply has been filed as of July 30, 2026.

LEGAL

STANDARD

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2031.300, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).) There is no time limit for a motion to compel responses to production of documents other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., § 2024.020, subd. (a), 2031.300.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2031.300; Sinaiko, *supra*, 148 Cal.App.4th at 411.)

A party must respond to interrogatories within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) If a party to whom interrogatories are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2030.290, subd. (b).) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2030.290, subd. (a).) There is no time limit for a motion to compel responses to interrogatories other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2030.290.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

DISCUSSION

Request for Production of Documents and Responses to Special Interrogatories

Plaintiff

contends that Defendant failed to timely respond to the RPDs and Interrogatories on or by the statutory deadline. (Mot., p. 5.)

Here, Plaintiff's

counsel served Defendant with the RPDs and Interrogatories by electronic service on September 18, 2025. (Angulo Decl., ¶ 10, Exh. G.) Responses were initially due on October 20, 2025; however, Plaintiff's counsel granted two back-to-back extensions requested by Defendant bringing the new deadline to November 19, 2025. (Angulo Decl., ¶ 10.) As of February 9, 2026, Plaintiff's counsel had not received any responses, despite giving Defendant several extensions by request and as a professional courtesy. (Ibid.)

However, the

Court's July 10, 2026, order granted Defendant relief from waiver as to the RPDs and Interrogatories and ordered the court to serve substantive responses. (See 7.10.26 Minute Order) On March 6, 2026, Defendant served Plaintiff with responses to the four sets of RPDs. (Zhou Decl., ¶ 7, Exh. B.) Further, Defendant purports that the matter has been settled and the parties are only awaiting execution of the settlement agreement. (Zhou Decl., ¶ 8.)

Since the court subsequently granted relief due to mistake, inadvertence, surprise, or excusable neglect and Defendant has responded to the RPDs and Interrogatories, the motion is DENIED as moot.

Sanctions

The Court shall impose sanction on the party, the person, or the attorney whose failure to serve a timely response to the request necessitated the motion to compel responses to interrogatories or RPD. (See Code Civ. Proc., §§ 2031.300(c), 2030.290(c); see also Cal. Rules of Court, Rule 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

“A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.” (Code Civ. Proc., § 2023.040.)

Since Plaintiff's motion to compel is denied as moot, the request for monetary sanctions is also DENIED.

CONCLUSION

AND ORDER

Plaintiff Albert

Valle's motions to compel initial responses to RPDs and Special Interrogatories and request for sanctions are DENIED.

MOVING PARTY to provide notice of this order.